

Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Sanctions

Plaintiff does not seek imposition of sanctions.

Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in RFA Nos. 1 through 6 and Nos. 8 through 11 are DEEMED ADMITTED by Defendant.
3. The genuineness of the document attached as Exhibit A to the RFAs, pursuant to RFA No. 7, is DEEMED ADMITTED by Defendant.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

5. 9:00 AM CASE NUMBER: L25-03562
CASE NAME: JEFFERSON CAPITAL SYSTEMS LLC VS. HUMBERTO VARGAS
HEARING ON SUMMARY MOTION
FILED BY: VARGAS, HUMBERTO
TENTATIVE RULING:

Defendant Humberto Vargas (“Defendant”) filed a Motion for Summary Judgment on September 11, 2025 (the “MSJ”). The MSJ was set for hearing on December 16, 2025.

Background

Defendant contends that it is entitled to summary judgment as a matter of law because

there is no triable issue of fact and it is entitled to summary adjudication as to each of Plaintiff Jefferson Capital Systems, LLC's ("Plaintiff") causes of action, which include Open Book Account, Account Stated, Money Had and Received, Money Lent and Money paid, Laid out, and Expended for Defendant at Defendant's Special Instance and Request. See MSJ filed September 11, 2025, Memorandum of Points and Authorities ("Plaintiff's MPA"), p. 1 *et seq.*

The causes of action pled in Plaintiff's Complaint are based on the allegation that Defendant became indebted for unpaid amounts in connection with a credit card account issued by Plaintiff's predecessor-in-interest, Synchrony Bank. See Complaint filed April 2, 2025. Defendant alleges that it is a debt buyer and the sole owner/assignee of Synchrony Bank's rights and obligations with respect to the subject credit card account and related indebtedness. *Id.* at p. 2, ¶9.

No opposition papers have been filed.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation, supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 850.

Procedural Defects Regarding Defendant's MSJ

Defendant's MSJ is procedurally defective. For this reason alone, the Court would deny the motion.

Defendant has failed to file a proper Separate Statement of Undisputed Material Facts. A party moving for summary judgment must support the motion with a Separate Statement that sets forth plainly and concisely all material facts that the moving party contends are undisputed, and each of the material fact must be followed by a reference to the supporting evidence. Code Civ. Proc. § 437c(b) and (f); see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 13.19. Although Defendant's MSJ paper contains a section with a header labeled "STATEMENT OF UNDISPUTED MATERIAL FACTS," that is not a proper Separate Statement which complies with the applicable rules and requirements.

Among other formatting requirements, a Separate Statement must separately identify each cause of action that is the subject of the motion and each supporting material fact claimed to be without dispute with respect to the cause of action. See Rule 3.1350(d) of the California Rules of Court (CRC). Defendant's paper does not do that. Seven purported issues are described without reference to any particular causes of action and without properly formatted citations to submitted evidence.

First Cause of Action: Common Counts (Open Book Account)

Even if not procedurally defective, the Court would deny Defendant's MSJ on the merits.

The elements of an open book account cause of action are: (1) that plaintiff and defendant had financial transactions; (2) that plaintiff kept an account of the debits and credits involved in the transactions; (3) that defendant owes plaintiff money on the account; and (4) the amount of money that defendant owes plaintiff. *State Comp. Ins. Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal.App.5th 422, 449.

Plaintiff's evidence consists largely of reference to responses by Plaintiff as to Requests for Admissions (the "RFAs") and various account records produced in discovery.

Defendant fails to articulate why and proffer evidence showing that one or more elements of Plaintiff's open book account cause of action cannot be established. Rather Defendant makes references to there being no signed agreement and discusses caselaw regarding a breach of contract claim. Defendant is not being sued for breach of contract. Moreover, Defendant's evidence and arguments utterly fail to account for Plaintiff's theory of recovery that Plaintiff is the successor-in-interest as the assignee of the original creditor on the account.

Defendant fails to carry his initial burden of production to make a *prima facie* showing of material fact(s) showing that the elements of this cause of action cannot be established or that there is a complete defense to it. Therefore, the burden of production to make a *prima facie* showing of the existence of a triable issue of material fact does not shift to Plaintiff.

Defendant also fails to carry his burden of persuasion to show that one or more elements of the cause of action cannot be established, or that there is a complete defense thereto.

Accordingly, the Court denies the MSJ as to Plaintiff's first cause of action for Open Book Account.

Remaining Common Count Theories Pled under First Cause of Action

Plaintiff has also pled alternate forms of common counts under the First Cause of Action. See Complaint filed April 2, 2025, Attachment, p. 3 (First Cause of Action).

The Court need not consider the alternate pled theories and whether Defendant is entitled to summary judgment as to such theories. Defendant failed to move for summary adjudication and the Court cannot grant summary judgment on less than all of the causes of action in a plaintiff's complaint. See Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 10:26. A single viable theory of recovery on a cause of action defeats Defendant's MSJ.

Disposition

The Court finds and orders as follows:

1. The MSJ is DENIED.
2. The Court shall issue the order.

6. 9:00 AM CASE NUMBER: L25-03679
CASE NAME: BANK OF AMERICA N.A. VS. TENISHA GARDNER
*HEARING ON MOTION IN RE:
FILED BY: BANK OF AMERICA N.A.
TENTATIVE RULING:

Plaintiff Bank of America, N.A. ("Plaintiff") filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted on October 6, 2025 (the "Motion to Deem Admissions"). The Motion to Deem Admissions was set for hearing on December 16, 2025.

Background

In light of the Court's ruling on a recent Motion for Relief from Waiver of Objections to Interrogatories and for Leave to Serve Late Responses on October 9, 2025 (the "Motion for Relief from Waiver") by defendant Tenisha M Gardner ("Defendant"), the Court ordered the parties to meet and confer regarding the Motion to Deem Admissions. See Order entered